Lancaster University

MANUAL OF ACADEMIC REGULATIONS

AND PROCEDURES 2026-27

ACADEMIC INTEGRITY REGULATIONS

(APPLICABLE FROM OCTOBER 2026)

Academic Quality, Standards and Conduct

Student and Education Services

MARP 2026-27

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MARP 2026-27
ACADEMIC INTEGRITY REGULATIONS

AM 1 PRINCIPLES

AM 1.1 The University values a culture of honesty and mutual trust in its academic endeavours (academic integrity) and expects all members of the University, staff and students, to respect and uphold these core values.

AM 1.2 Any decisions taken under these procedures by a member of staff, panel or committee of the University shall be made on the basis of the balance of probability and take full account of the principles of natural justice, fairness and equity.

AM 1.3 Academic departments shall provide advice and guidance to students on academic integrity and what constitutes academic malpractice, and make students aware of these regulations and the possible outcomes of proven academic malpractice.

AM 1.4 Students have a responsibility to engage with University provision which informs and educates on the topic of academic integrity. Through this, students will ensure that they are aware of the University's expectations and the regulations. All members of the University are responsible for the academic integrity of their own work.

AM 1.5 Any student who is alleged to have been involved in a shortfall of academic integrity shall have access to Lancaster University Students' Union support and advice at all stages of the procedures contained in these regulations, and the department shall inform the student of this right.

AM 1.6 All students shall be given the opportunity to submit a defence against an allegation of academic malpractice and have the right to be accompanied by an individual unconnected to the case in any investigative meeting/Hearing.

AM 1.7 Where students who are under investigation for academic malpractice are also the subject of Fitness to Practise proceedings, the academic malpractice judgement must be available in order to inform the Fitness to Practise proceedings at the appropriate stage.

AM 1.8 Where an investigation concerns matters of research integrity for a postgraduate research student, and falls within the research process (including, but not limited to ethics approvals, data management and dissemination), as per the University's commitment to research integrity and the expectations for researchers set out in the University's Code of Practice, the case will fall under the scope of the Research Misconduct Policy.

AM 1.9 Where an investigation concerns matters of research integrity or ethics for undergraduate or postgraduate taught students, cases shall be considered under these regulations and considered as a potential breach of academic integrity.

AM 1.10 The University, via Senate, has a responsibility to ensure the academic integrity of its awards, and sets out the regulatory expectations for academic integrity in this chapter. Supporting and maintaining this academic integrity are the Academic Misconduct Panel (AMP) detailed in section 3.4, and the General Procedures for the Academic Misconduct Panel, which are detailed in Appendix 1 of this document. Within that procedure, the

Senate delegates decision making for the determination of potential breaches, and any appropriate sanctions, to the Academic Misconduct Panel. The decisions of the Academic Misconduct Panel are binding on boards of examiners.

AM 2 DEFINITION AND FORMS OF ACADEMIC MALPRACTICE

AM 2.1 DEFINITION

AM 2.1.1 It is an academic offence (termed academic malpractice) for a student to commit any act designed to obtain for themselves or others an unfair advantage with a view to achieving a higher grade, mark or more favourable outcome than they would otherwise secure. Any attempt to convey deceitfully the impression of acquired knowledge, skills, understanding, or credentials, shall represent a contravention of the regulations of the University, and may constitute grounds for exclusion.

AM 2.2 PLAGIARISM

AM 2.2.1 Plagiarism is understood to include, in whatever format it is presented, including written work, group work or oral presentations, the following:

(a) the act of copying or paraphrasing from a source without appropriate acknowledgement (this includes quoting directly from another source with a reference but without quotation marks);

(b) the submission of all or part of another student's work, whether with or without that student's knowledge or consent;

(c) the commissioning or use of work by the student which is not their own and representing it as if it were;

(d) the submission of all or part of work purchased or obtained from a commercial service;

(e) the submission of all or part of work created by another person, whether by another member of the University or a person who is not a member of the University;

(f) inclusion of material derived through False Authorship (as defined in AM 2.3 below);

(g) reproduction of the same or almost identical own work, in full or in part, which has previously been submitted for assessment. This does **not** include programmes of study where the student is permitted or required to develop previously assessed work into a larger argument for the dissertation/thesis;

(h) directly copying from model solutions/answers made available.

AM 2.3 FALSE AUTHORSHIP

AM 2.3.1 False Authorship is a form of plagiarism where misrepresentations are made on who created material, either by falsely claiming ownership of work produced or by attributing work to a person or tool (e.g. software coding) that did not create it. False authorship

can be direct or through an intermediary, and can be either in part or whole of the work in question. This may include work produced by another individual, an essay mill, a commercial service, or through the use of Artificial Intelligence software. As it is the authorship of work that is contested, there is no requirement to prove that the work has been purchased. The submission of undeclared work which is either generated and/or improved by language model software for the purposes of gaining marks will be regarded as False Authorship and interpreted as an attempt to gain an intentional unfair academic advantage.

AM 2.4 COLLUSION

AM 2.4.1 Collusion occurs where a piece of work prepared by a group is represented as if it were the student's own. This can also occur by enabling a fellow student to obtain academic credit to which they are not entitled. This includes providing material or performing all or part of an assigned task so that unfair advantage or credit may be obtained by another student.

AM 2.5 FABRICATION OR FALSIFICATION OF RESULTS

AM 2.5.1 Fabrication or falsification of results occurs when a student claims to have carried out tests, experiments or observations that have not taken place or presents results not supported by the evidence with the object of obtaining an unfair advantage.

AM 2.6 CHEATING IN EXAMINATIONS AND CLASS TESTS

AM 2.6.1 Cheating in examinations (including remote examinations and oral examinations) and class tests includes those occurrences when a student:

(a) communicates, or attempts to communicate, with anyone about the content of the assessment, including another student or any other individual who is neither an invigilator nor a member of staff;

(b) copies, or attempts to copy, from a fellow student;

(c) attempts to introduce or consult during the examination or test any unauthorised printed or written material, or electronic calculating or information storage device or mobile phone or other communication device;

(d) personates another student or allows themselves to be impersonated;

(e) disrupts the assessment of another student.

AM 2.7 MISREPRESENTATIONS OF HOURS IN PRACTICE AND COMPETENCIES

AM 2.7.1 In the case of professional qualification conditions, falsification of hours completed in practice or claiming to have achieved required competencies when this is untrue.

AM 2.8 PROOFREADING

AM 2.8.1 Proofreading should initially be undertaken by students themselves and there is no requirement that students use any form of proofreading service, however, it is recognised that some students may wish to have a third party proofread their work prior

to submission or that this may be a recommendation within a student's personalised Inclusive Learning and Support Plan. Proofreaders must not actively edit or create content in a student's draft work, and must not make any intervention that would substantially change the content of a piece of work. It is the student's responsibility to ensure that the work of a proofreader does not also entail instances of academic malpractice. Further guidelines and the University policy on proofreading are available on the web. If students have any questions about the proper application of proofreading, they should contact their academic tutor, module leader, supervisor or a learning developer in the first instance.

AM 2.9 ACADEMIC MALPRACTICE & ARTIFICIAL INTELLIGENCE DETECTION SOFTWARE

AM 2.9.1 Unless express permission is received in advance, students must not submit or upload assessment submissions to any external detection software or platforms designed to inspect for academic malpractice or artificial intelligence usage. Doing so can create a false positive with individual work being lodged in assignment comparator repositories and lead to suspicions of academic malpractice.

AM 2.9.2 The University reserves the right to use such software (e.g., Turnitin) upon the receipt of assessment submissions, and reports delivered by this software may be used as evidence in cases of alleged academic malpractice.

AM 3 ROLES AND RESPONSIBILITIES

AM 3.1 DEPARTMENT ROLES AND RESPONSIBILITIES FOR TAUGHT PROVISION

AM 3.1.1. **Academic Marker:** Each Academic Marker identified as such by a department or equivalent shall be responsible for providing an appropriate mark and feedback for student work. All Academic Markers shall make a positive effort to identify poor scholarship practices or academic malpractice, in all assessment items. They shall report where appropriate on cases for which they have marking responsibilities to the relevant Academic Integrity Officer, and produce evidence in support of such a claim. Where the Academic Marker is not permanently employed by the University in an academic position then these responsibilities shall be upon the named Module Convenor or relevant Head of Department.

AM 3.1.2 **Academic Integrity Officer:** Each department or equivalent shall designate at least one academic member of staff, to be known as the Academic Integrity Officer, who shall take responsibility for the investigation of academic malpractice in coursework at undergraduate and postgraduate levels and for subsequent action where appropriate. Professional services staff can support the administration of the role as appropriate. The responsibilities of the Academic Integrity Officer shall include reporting cases of poor academic practice or academic malpractice and keeping a written record of all cases of alleged academic malpractice.

AM 3.2 STUDENTS' UNION

AM 3.2.1 Appropriate Lancaster University Students' Union staff may act as a representative of the student in any meetings or correspondence with the department, an Academic Integrity Officer or the Academic Misconduct Panel.

AM 3.2.2 Students who wish to utilise the services of the Students' Union in this respect are advised to do so when they are first aware of an investigation concerning academic integrity, to allow for resource to be allocated where available.

AM 3.3 STUDENT AND EDUCATION SERVICES

AM 3.3.1 Student and Programme Administration shall be responsible for recording, or providing the means for departments to record, all alleged and detected cases of academic malpractice, including plagiarism in coursework and cheating in examinations.

AM 3.3.2 Academic Quality, Standards and Conduct shall also provide information and other support to departments to assist them in discharging their duties; communicating information between departments about academic malpractice as appropriate; and offering assistance and advice about procedures and best practices.

AM 3.3.3 Where the procedures require, as detailed in these regulations, Academic Quality, Standards and Conduct shall be responsible for undertaking *prima facie* investigations and for forwarding cases to the Academic Misconduct Panel as appropriate. These initial investigations will normally be undertaken by the Academic Conduct and Appeals Investigator or their nominee.

AM 3.4 ACADEMIC MISCONDUCT PANEL

AM 3.4.1 The Academic Misconduct Panel shall consider all cases of alleged academic malpractice referred to it by the responsible member of staff and determine if an academic offence has been committed.

AM 3.4.2 In limited circumstances and with limited outcomes, some cases may be processed by the Academic Misconduct Panel through a Summary Hearing. Where a Summary Hearing takes place, students *always* have the option to request a full hearing of the Academic Misconduct Panel in place of the Summary Hearing. (Full details of this process are contained in the appendix to these regulations.)

AM 3.4.3 Where a student's engagement with or progression through their degree is a cause for concern, these cases are handled by the Academic Progress Concerns Panel (APCP). Please refer the Study Regulations for UG and PGT students, and to the Postgraduate Research Regulations for Postgraduate Research students.

AM 4 ACADEMIC MALPRACTICE IN UNDERGRADUATE AND POSTGRADUATE COURSEWORK AND REMOTE EXAMINATIONS (TAUGHT PROGRAMMES AND TAUGHT COMPONENTS OF RESEARCH PROGRAMMES)

AM 4.1 ACADEMIC MARKER STAGE

AM 4.1.1 Academic Markers shall, when concern is identified, use their judgement to decide if some form of **poor academic practice** or some form of **academic malpractice** has occurred.

AM 4.1.2 Where it is decided that student work displays some form of poor academic practice but not academic malpractice the academic marker will deal with this as part of the normal feedback and assessment procedures.

AM 4.1.3 The academic judgement of the Academic Marker may be that the poor academic practice should lead to a significant reduction in the mark awarded or that the affected work should be set aside and the remaining work marked as normal.

AM 4.1.4 The student must be informed of the nature of the problem and why it is unacceptable and a note of 'poor academic practice' shall be recorded by the department in the LUSI Student Record.

AM 4.1.5 Where the student work displays some form of poor academic practice as above, but the student has not taken note of previous advice of similar problems, then the student must be informed of the repeated problems, be required to meet with their Director of Studies and an 'academic warning' shall be recorded by the department in the LUSI Student Record.

AM 4.1.6 Where a student has previously received a note of poor academic practice on their record, departments must check that the feedback given predates the submission of the assessment being marked. Only if the student had opportunity to have seen the earlier feedback to inform the later submission can the subsequent instance be treated as a separate case.

AM 4.1.7 Students receiving an academic warning will be referred to Learning Development to receive additional support in their academic practices.

AM 4.1.8 Where the Academic Marker decides that the quantity of affected text is too great to be dealt with by setting the text aside as this would result in a mark of failure or not meeting learning outcomes, or that there is suspicion of some form of academic malpractice, then the case shall be referred to the Academic Integrity Officer as the first step in an investigation.

AM 4.2 ACADEMIC INTEGRITY OFFICER STAGE

AM 4.2.1 When a case is referred to the Academic Integrity Officer:

(a) The Academic Integrity Officer shall investigate the matter and use their academic judgement and experience to decide if the case is one that should be dealt with by the Academic Marker and not warranting further investigation or a Hearing.

(b) Where this is the case, the Academic Integrity Officer should instruct that the work be given an appropriate mark with the affected passages set aside as above, along with the relevant communications about the reasons for any reduced mark being communicated to the student.

(c) The Academic Integrity Officer should ensure that a record is made in the student's record in LUSI that marks have been lost through poor academic practice.

AM 4.2.2 Where the case is one that warrants further investigation, the Academic Integrity Officer should undertake this investigation and arrange for a Hearing with the student. The Academic Marker shall attend the Hearing to present the case. Other staff members may be required to attend as necessary, to detail the specifics of the case. A record of the Hearing should be taken.

Prior to the Hearing

(a) The student should be advised of their right to be accompanied by an individual who is not directly involved with the case being investigated.

(b) The student should be able to review any documentary evidence prior to the Hearing, including in the case of plagiarism any Turnitin reports or coursework annotated by the Academic Marker.

(c) The Academic Integrity Officer shall check in the LUSI Student Record System for any previous notation relating to academic integrity.

At the Hearing

(a) The Academic Integrity Officer will outline the case.

(b) The Academic Integrity Officer will ask the Academic Marker or course convener to present evidence.

(c) The student will be asked to respond to the allegations regarding their work and may also wish to consider if there are any exceptional circumstances which should be made known to the Academic Integrity Officer.

AM 4.2.3 The Academic Integrity Officer shall decide one of the following actions after hearing the case:

(a) that no action of any kind will be taken. Where appropriate this may mean that the Academic Marker shall be instructed to mark the work normally;

(b) that the matter should be considered as a matter of poor academic practice and dealt with as described in AM 4.2.1;

(c) that the student will be required to submit an alternative piece of work;

(d) that the student will be required to submit an alternative piece of work and such work shall be eligible to receive only the minimum pass mark appropriate to the student's programme of study. This choice and (c) are never available where the offence is in connection with misconduct in a class test or an already granted resubmission opportunity;

(e) that no form of resubmission should be allowed and a mark of zero or equivalent grade should be recorded for the work. Where this leads to a non-compensable fail for the module, the case should instead be referred to the Academic Misconduct Panel;

(f) that the case should be referred to the Academic Misconduct Panel because of its serious nature, or there being repeated offences despite warnings received.

If the student refuses or fails to repeat and resubmit the work when given the opportunity, a mark of zero or equivalent grade shall be recorded.

AM 4.2.4 The Academic Integrity Officer should inform the student of their decision as soon as possible and at the latest, in writing within seven days. Where appropriate the record of '**poor academic practice**', or '**academic malpractice**' shall be recorded by the department in the LUSI Student Record.

AM 4.2.5 Where multiple offences are discovered after the Senate deadline (or postgraduate taught equivalent) the case shall be referred to the Academic Misconduct Panel.

AM 4.2.6 If the student does not accept the decision of the Academic Integrity Officer, they shall have the right to petition the Academic Misconduct Panel to rehear the case. At the Academic Misconduct Panel Hearing they shall have the right to be heard. The Academic Integrity Officer shall attend the Academic Misconduct Panel Hearing to present the department's case.

AM 4.3 ACADEMIC MISCONDUCT PANEL STAGE

AM 4.3.1 The Academic Misconduct Panel will be presented to by the academic department, and the student and/or their representation will be invited to make a statement. Following consideration of the evidence, the Panel shall have the authority to impose one of the following penalties:

(a) decide that no further action is required;

(b) decide that the matter should be considered as a matter of poor academic practice and dealt with as described in AM 4.2.1;

(c) to permit the student to repeat the work;

(d) to permit the student to repeat the work, subject to receiving only the minimum pass mark appropriate to the piece of work;

(e) to award zero or equivalent grade for the aspect of the work in question;

(f) to award zero or equivalent grade for the whole coursework or dissertation;

(g) to award zero or equivalent grade for the unit or course module;

(h) to award zero or equivalent grade (as under AM 4.3.1 (g)) and, where the inclusion makes no difference to the class of award, to recommend that one class lower than the one determined by the arithmetic be awarded;

(i) to exclude the student permanently from the University, where the offence is detected before the final assessment is completed;

(j) not to award the degree, where the offence is detected after the final assessment has been completed.

AM 4.3.2 Where a mark of zero has been awarded as per AM 4.3.1, the exam board shall ordinarily exceptionally condone this mark provided that this does not lead to the student having more than the permitted number of compensated credits under the relevant assessment regulations. Where such condonation would lead to the maximum number of compensated credits being exceeded, the mark shall remain uncompensated, and the board of examiners shall deal with the student accordingly.

AM 4.3.3 Where a mark of zero has been awarded as per 4.3.1 (e) or (f), if this creates a non-compensable fail mark for the module, an automatic zero is applied to the module and AM 4.3.2 applies.

AM 5 ACADEMIC MALPRACTICE IN UNDERGRADUATE AND POSTGRADUATE IN PERSON EXAMINATIONS (TAUGHT PROGRAMMES AND TAUGHT COMPONENTS OF RESEARCH DEGREE PROGRAMMES)

AM 5.1 PROCEDURES FOLLOWING DETECTION

AM 5.1.1 If a student is suspected of an academic offence as defined under these regulations the invigilator shall at once contact the Head of Student and Programme Administration (or nominee) who will immediately go to the examination venue to investigate and will also inform the head(s) of the student's major department(s) and, if different, of the department responsible for the examination.

AM 5.1.2 The student will be permitted to continue the examination in which they are suspected of malpractice, but the invigilator will request that the student remains behind at the end of the examination for interview by the Head of Student and Programme Administration (or nominee), at which a representative of Lancaster University Students' Union shall be invited to be present and written notes will be made.

AM 5.1.3 If after this preliminary interview it is clear that no offence has taken place then the investigating officer(s) shall take no further action.

AM 5.1.4 If it is decided to carry out a formal investigation the student shall be informed of this but also told that they will be permitted to complete all the examinations they would normally take at that stage in their course.

AM 5.1.5 The invigilator shall, as soon as possible after the examination, provide the Head of Student and Programme Administration with a written report giving full details of the alleged offence and enclosing any material evidence relevant to the case.

AM 5.1.6 On receipt of the report, the Head of Student and Programme Administration (or nominee) shall investigate the alleged offence, making such enquiries as they see fit and with access to all relevant documents. The student shall be interviewed and asked whether they wish to say anything or to provide any information relevant to the alleged offence. If after preliminary investigation the Head of Student and Programme Administration (or nominee) is not satisfied that there is a *prima facie* case to answer, they shall inform the student and the other parties concerned, and the matter shall end there.

AM 5.1.7 If the Head of Student and Programme Administration (or nominee) is satisfied that there is a *prima facie* case to answer, they shall formally notify the student in writing of the charge and inform them that the case will be referred to the Academic Misconduct Panel at which Hearing the student (accompanied if desired) shall have the right to be heard. Where required the Academic Integrity Officer shall attend the Academic Misconduct Panel Hearing on behalf of the department.

AM 5.1.8 The Academic Misconduct Panel, having considered the evidence, shall have the authority to impose one of the following penalties:

(a) decide that no further action is required;

(b) require the student to resit the examination in which they cheated and if deemed appropriate other examinations or units of assessment;

(c) require the student to resit the examination in which they cheated and if deemed appropriate other examinations or units of assessment, subject to receiving only the minimum pass mark appropriate to the piece of work;

(d) award a mark of 0 or equivalent grade for the examination;

(e) award a mark of 0 or equivalent grade for the entire module;

(f) direct that the student be awarded a classification lower than the one derived from the mark profile (after any 0 mark or equivalent grade awarded under (d) or (e) has been included);

(g) direct that the student be awarded no more than a Pass degree;

(h) in addition to one of (b) to (g) temporarily exclude the student from the University;

(i) permanently exclude the student from the University without a degree;

(j) exceptionally not impose a specific penalty, but refer the case to the appropriate board of examiners with a full statement of findings together with suggestions for appropriate action (see AM 5.2).

AM 5.1.9 Where a mark of zero has been awarded as per AM 5.1.8, the exam board shall ordinarily exceptionally compensate this mark provided that this does not lead to the student having more than the permitted number of compensated credits under the relevant assessment regulations. Where such compensation would lead to the maximum number of compensated credits being exceeded, the mark shall remain uncompensated, and the board of examiners shall deal with the student accordingly.

AM 5.2 PROCEDURES WHERE THE ACADEMIC MISCONDUCT PANEL REFERS A CASE OF ACADEMIC MALPRACTICE IN AN EXAMINATION TO A BOARD OF EXAMINERS

AM 5.2.1 Any student found by the Academic Misconduct Panel to be guilty of an academic offence as defined under these regulations and whose case is referred to a board of examiners, shall have the right to submit to the board a written plea in mitigation but they shall not have the right to appear or to be represented by another before the

board. Boards of examiners have absolute discretion to take into account, in making their decisions, such evidence as they may consider relevant to a student's academic performance and to decide whether to call for further oral or written evidence. They may also take into account, but shall not be bound by, the suggestions of the Academic Misconduct Panel. In considering the suggestions of the Academic Misconduct Panel, the decisions of boards of examiners shall be subject to ratification by the Committee of the Senate.

AM 6 ACADEMIC INTEGRITY IN THE RESEARCH DEGREE

AM 6.1 APPLICABILITY

AM 6.1.1 For the degrees of:

(a) DSc, DLitt, PhD (including by published work), DClinPsy, DMgt, EngD, MPhil, MD; and

(b) for the degrees of MA, MSc, LLM, MMus if relating to a programme validated for such awards on the basis of research and titled 'By Research';

the definition of malpractice is as set out in section AM 1 above and includes: cheating in examinations (if applicable); plagiarism in the thesis or dissertation (or equivalent) (including in published works if submitted as a part of an award); and fabrication of results.

AM 6.1.2 In addition, for the awards listed above, plagiarism shall be deemed to include unacknowledged or unattributed concepts, proposals, interpretations, methodologies, or conclusions, which take place beyond the verbatim reproduction of texts or material without explicit identification or the source of the reference.

AM 6.1.3 Reference to 'thesis' or 'dissertation' in these regulations includes those formats/outputs, as defined in the Postgraduate Regulations, which are deemed to be equivalent to the traditional PhD format.

AM 6.1.4 Academic malpractice suspected to have occurred in work submitted for the assessment of **taught components** of research programmes will be considered under the procedures for taught programmes (see sections AM 4 and AM 5).

AM 6.1.5 In the investigation of potential academic malpractice by research degree students, a procedural distinction is made between misconduct in the way the research work is carried out (i.e. in the research practice) and academic malpractice in the research output(s). Suspected misconduct in research practice, as defined here, will be considered under the University's procedures on research ethics and research governance. Suspected academic malpractice in research output(s), including the fabrication of results (as defined in AM 2), will be dealt with under these Academic Integrity Regulations and Procedures.

AM 6.1.6 Where a member of staff is undertaking a research degree as a student of the University and is suspected of academic malpractice in the research degree this will be investigated under these Academic Integrity Regulations and Procedures. This does not preclude the

University from also considering this a matter relating to employment, but that process should not be used to circumvent these regulations.

AM 6.2 ADDITIONAL ROLES WITHIN RESEARCH DEGREE PROGRAMMES

AM 6.2.1 **Supervisor:** The supervisor shall be responsible for advising the student on the University's regulations and procedures where it is suspected that academic malpractice may have been committed by the student.

AM 6.2.2 **Chair/lead of the Confirmation of PhD Panel:** the chair/lead of the Panel shall be responsible for writing a report on the suspected academic malpractice in the work submitted for Confirmation of PhD.

AM 6.2.3 **Internal and External Examiners for the thesis**: The Internal and External Examiners for the thesis shall be responsible for writing a report on the suspected academic malpractice in the work submitted for examination.

AM 6.3 THE PRESENTATION OF MATERIAL AND SUBMISSION OF THE THESIS/DISSERTATION

AM 6.3.1 If a student is under investigation for suspected academic malpractice they shall not be permitted to submit the thesis or dissertation for examination. Permission to submit will be conditional upon the outcome of this investigation.

AM 6.4 ACADEMIC MALPRACTICE IN THE SUBMISSION FOR CONFIRMATION OF PHD

AM 6.4.1 In the event that members of the Confirmation of PhD Panel find evidence of academic malpractice in the student's submission to the Panel, the Panel shall not make any decision but shall instead submit a written report on their findings to the Head of Academic Quality, Standards and Conduct and copied to the PGR Director and supervisor(s). Such a report shall set out the evidence that academic malpractice has taken place and may include a recommendation for re-submission to the Panel.

AM 6.4.2 The report from the Confirmation of PhD Panel shall be referred to the Academic Misconduct Panel by the Head of Academic Quality, Standards and Conduct. The Panel shall set up a Hearing to test the recommendation of the Panel members and the evidence of academic malpractice presented by them at which the student shall have the right to be heard accompanied by an individual unconnected to the case, if desired. The chair of the Confirmation of PhD Panel shall attend the Academic Misconduct Panel Hearing to present the department's case.

AM 6.4.3 The Panel shall, having considered all the evidence, have the authority to impose one of the following penalties:

(a) that the accusation of academic malpractice is unfounded, the student's Confirmation of PhD is void, and the student shall be considered as for the first time by a new panel, at a date to be determined;

(b) that the accusation is upheld, such that the student is deemed to have failed the requirements for Confirmation of PhD with one opportunity for revision and a second submission to the same panel, at a date to be determined;

(c) that the accusation is upheld, such that the student is deemed to have failed the requirements for Confirmation of PhD and the student shall be permanently excluded from the University.

AM 6.4.5 A second or subsequent breach in work submitted to a Confirmation of PhD Panel will result in a decision by the Panel to refer the matter to the Academic Misconduct Panel with a recommended outcome.

AM 6.5 ACADEMIC MALPRACTICE IN THE THESIS OR DISSERTATION SUBMITTED FOR EXAMINATION

AM 6.5.1 This regulation shall be issued to all examiners for the awards set out above.

AM 6.5.2 In the event that the examiners find evidence of academic malpractice **during the preliminary assessment** of the thesis or dissertation submitted for the award, the *viva voce* examination shall be postponed pending the outcome of an investigation. The examiners shall submit a written report on their findings to the Head of Academic Quality, Standards and Conduct. Such a report shall set out the evidence that academic malpractice has taken place and may include a recommendation for outright failure with no opportunity for resubmission or re-examination.

AM 6.5.3 In the event that the examiners find evidence of academic malpractice **during the *viva voce* examination** the examiners shall not make an award but shall instead submit a written report on their findings to the Head of Academic Quality, Standards and Conduct and copied to the PGR Director and supervisor(s). Such a report shall set out the evidence that academic malpractice has taken place and may include a recommendation for outright failure with no opportunity for resubmission or re-examination.

AM 6.5.4 The report from the examiners under either AM 6.4.2 or 6.4.3 above shall be referred to the Academic Misconduct Panel by the Head of Academic Quality, Standards and Conduct. The Panel shall set up a Hearing, which the student shall be invited to attend and may be accompanied to by an individual unconnected to the case. The Panel shall test the recommendation of the examiners and the evidence of academic malpractice presented by them. A representative from the department (who may be an internal examiner) shall attend the Hearing to present the examiners' case.

AM 6.5.5 The Panel shall, having considered all the evidence, have the authority to impose one of the following penalties:

(a) that the accusation of academic malpractice is unfounded, the student's examination is void, and the student shall be examined as for the first time by a new panel of examiners, at a date to be determined;

(b) that the accusation is upheld, such that the student is deemed to have failed with one opportunity for revision and resubmission at a date to be determined, for re-examination for the award originally sought, by the same examination team;

(c) that the accusation is upheld, such that the student is deemed to have failed outright and shall be permanently excluded from the University.

AM 7 RETROSPECTIVE DETECTION

AM 7.1 Retrospective detection is defined as the discovery of alleged academic malpractice in work that has been subject to final moderation, including by a relevant board of examiners.

AM 7.2 The University shall reserve the right to review work retrospectively and to apply the appropriate procedures and, where reasonable, the appropriate penalties.

AM 7.3 Approval by an examination board of a degree classification shall not prevent the reasonable application of retrospective review.

AM 7.4 Where there are reasonable grounds to review work, the relevant Academic Integrity Officer shall initiate the process and shall have the right to require the student to resubmit work that has been finally assessed, and to refer the matter to the Academic Misconduct Panel with a recommended sanction.

AM 7.5 The Academic Misconduct Panel shall, in addition, have the right to require retrospective review of any assessed work of students referred to it under the Academic Integrity Regulations and procedures.

AM 7.6 Failure by the student to produce the required material shall normally be treated by the Academic Misconduct Panel as leading to the assumption that academic malpractice had taken place.

AM 7.7 The University has the power to revoke an award under the procedures defined in its Charter and Ordinances: *Provisions to deprive persons of degrees, diplomas, certificates and other academic distinctions.*

AM 8 APPEALS AGAINST PENALTIES FOR ACADEMIC MALPRACTICE

AM 8.1 A student who has been judged to have committed academic malpractice by Academic Misconduct Panel or other appropriate University body shall have the right to request a review of the judgement. The procedure and form for requesting a review is found here.

APPENDIX 1: ACADEMIC MISCONDUCT PANEL - GENERAL PROCEDURES FOR THE CONSIDERATION OF ACADEMIC MALPRACTICE CASES

1. The Academic Misconduct Panel shall hear cases:

   (a) referred to it by (or nominees of): an Academic Integrity Officer, or the Head of Student and Programme Administration, or the Head of Academic Quality, Standards and Conduct;

   (b) relating to offences where the student does not accept the decision of the Academic Integrity Officer;

   (c) relating to alleged multiple offences after the Senate deadline for the final submission of coursework (or postgraduate equivalent). The Panel's decisions shall be informed by the seriousness of the offence rather than by the time of year.

2. The Academic Misconduct Panel shall consist of three members (including the Chairperson), approved by Senate. In cases where a serving member of the Academic Misconduct Panel is a member of any of the departments in which the student has studied, or is studying, then the member must remain neutral and not be involved in decision making for that case. In no case may a serving member of the Academic Misconduct Panel be a witness for the Academic Integrity Officer or for the student.

3. All Hearings shall be held in private (in-person or remotely), and a written record shall be kept of the evidence submitted to the Panel, the Panel's decision and the reasons for arriving at the decision.

4. A member of staff who has undertaken an investigation into a suspected case of academic malpractice may not act as secretary to the Panel for the hearing of that case.

5. If the Panel do not believe that there is a case for the student to answer to after reviewing the evidence provided, all relevant parties will be informed that the case is closed as soon as possible without a Hearing taking place.

6. A Summary Hearing is available to the Panel in circumstances where:

   (a) a student is accused of plagiarism (as distinct to collusion or cheating);

   (b) the allegation is that less than 50% of the work is plagiarised; and

   (c) the student alleged to have plagiarised has not previously been found to have committed an academic offence.

7. Summary Hearings can be chaired by a single member of the Academic Misconduct Panel, or be conducted by correspondence where a student elects to provide a written statement only. The powers of a Summary Hearing are capped at permitting the student to repeat the assessment element, subject to receiving only the minimum pass mark.

8. Where a student wishes to challenge the findings of a Summary Hearing, they have the right to appeal this decision to a full Hearing of the Academic Misconduct Panel. Appeals

must be received within 15 calendar days of the Summary Hearing outcome. This would be a new first hearing, and so a further right of appeal would exist from decisions of the Academic Misconduct Panel as detailed in AM 8 of the regulations. The panel member who heard the Summary Hearing must not sit on any subsequent hearing of the case.

9. For a full Hearing of the Academic Misconduct Panel, the Panel will be convened with all possible speed. No less than seven days prior to the Hearing, the student shall be informed in writing:

   (a) of the time, date and place of the Hearing;

   (b) of the nature, date and time of the alleged offence;

   (c) that they may present evidence in their defence orally at the Hearing and/or in writing;

   (d) that they may be accompanied by a friend or representative if desired who will normally be a member of the University but unconnected to the case being heard (e.g. a College Advisor, Students' Union Representative);

   (e) that they may call witnesses to support their case (whose identity must be notified to the secretary of the Panel prior to the Hearing in order that their attendance can be assured).

10. Written representations and/or evidence can be provided by the student up to 72 hours prior to the Hearing. Anything received after this deadline might not be considered, at the discretion of the Panel.

11. Department representation in attendance will normally be the Academic Integrity Officer or nominee.

12. The Panel shall have the power to adjourn, continue or postpone a Hearing at its discretion but shall always endeavour to complete its examination of the matter at the earliest opportunity.

13. If the student does not appear on the date and time or at the place appointed, reasonable notice having been given, the Panel may proceed to hear the matter in the student's absence.

14. If the student wishes to admit the charge, they may do so in writing to the secretary of the Panel. In this event the student will be advised that they should still appear before the Panel for the formal presentation of evidence by the department representative and for examination of the evidence by the Panel.

15. If no letter of admission is received from the student, it will be assumed that the charge is denied.

16. The Panel may hear evidence in any way it sees fit. This includes the testimony of witnesses, and the production of documents or other relevant material evidence. The department representative and the student (or the person accompanying the student) shall be entitled at the Hearing to make an opening statement, to give evidence, to call witnesses, to cross examine witnesses and to address the Panel.

17. The Panel will find the charge proven if all or all but one of its members agree, on the evidence before it, that the offence was committed. If the Panel does not find the charge proven, it shall inform the student and all parties concerned immediately, and the matter shall end there.